

Court No. - 21

Case :- WRIT - C No. - 31605 of 2021

Petitioner :- Gulam Mustafa Siddiqui

Respondent :- State Of U.P Thru Secretary Home Lknw. And Another

Counsel for Petitioner :- Pawnesh Tiwari

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

As prayed, put up as fresh on 13.12.2021 **showing the name of** Sri Narendra Kumar Tiwari, as counsel for the respondents.

Order Date :- 6.12.2021

S.Chaurasia

Court No. - 21

Case :- WRIT - C No. - 31605 of 2021

Petitioner :- Gulam Mustafa Siddiqui

Respondent :- State Of U.P Thru Secretary Home Lknw. And Another

Counsel for Petitioner :- Pawnesh Tiwari

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

On the request of learned counsel for the petitioner, put up as fresh on 13.12.2021.

Order Date :- 6.12.2021

Saurabh

Court No. - 3

Case :- WRIT - C No. - 31605 of 2021

Petitioner :- Gulam Mustafa Siddiqui

Respondent :- State Of U.P Thru Secretary Home Lknw. And Another

Counsel for Petitioner :- Pawnesh Tiwari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"i. Issue a writ, order or direction in the nature of writ of certiorari quashing the impugned final assessment order dated 01.09.2021 passed by Executive Engineer, Vidyut Vitaran Khand II Purvunchal Vidyut Vitaran Nigam Limited, 57 George Town Prayagraj, which has been passed in violation of statutory law and principal of natural justice.

ii. Issue a writ, order or direction in the nature of writ of Mandamus commanding/directing the respondent not give effect to the impugned final assessment order dated 01.09.2021 passed by Executive Engineer, Vidyut Vitaran Khand II Purvunchal Vidyut Vitaran Nigam Limited, 57 George Town Prayagraj, which has been passed in violation of statutory law and ;principal of natural justice."

Learned counsel for the respondent No.2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed off giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 20.5.2022

o.k.